

Seelam Satya Durga Devi vs Seelam Venkatesh on 7 January, 2025

APHC010374022024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

TUESDAY ,THE SEVENTH DAY OF JANUARY
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 282/2024

Between:

Seelam Satya Durga Devi

...PETITIONER

AND

Seelam Venkatesh

...RESPONDENT

Counsel for the Petitioner:

1. TADDI SOWMYA NAIDU

Counsel for the Respondent:

1. N SRIRAM MURTHY

The Court made the following:

ORDER:

The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw the F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur and transfer the same to the Family Court-cum-V Additional District Judge, Visakhapatnam, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and the marriage of the petitioner with the respondent was performed on 20.08.2021, at Annavaram Satyanarayana Swamy Devasthanam, as per the Hindu Rites and Caste Customs. In view of the matrimonial disputes between both the parties, the petitioner/wife is staying separately at her parents' house at Visakhapatnam. The petitioner pleaded

that she lodged a complaint against the respondent/husband and his family members in Crime No.347 of 2023 under Sections 498-A and 506 of I.P.C, and under Sections 3 and 4 of Dowry Prohibition Act, 1961, the same was registered vide C.C.No.601 of 2024 on the file of the I Additional Chief Metropolitan Magistrate at Visakhapatnam. The petitioner/wife further pleaded that she filed maintenance case under Section 125 of Cr.P.C., against the respondent/husband vide F.C.O.P.No.806 of 2024 on the file of the V Additional District and Sessions-cum-Family Court at Visakhapatnam, seeking monthly maintenance from the respondent/husband and she also filed a Domestic Violence Case vide D.V.C.No.12 of 2024 on the file of the XVI Additional Metropolitan Magistrate, Bheemunipatnam, under Section 12 of the Protection of Women form Domestic Violence Act, 2005, and the same are pending for adjudication before the competent Courts at Visakhapatnam.

II. The petitioner/wife further pleaded that to cause unnecessary inconvenience to her, the respondent/husband filed F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights. III. Learned counsel for the petitioner further contended that the petitioner being a woman depending upon her parents at Visakhapatnam, it is very difficult for her to travel at a distance for more than 400 Kms from Visakhapatnam to Guntur to attend the case proceedings on each and every adjournment before the said Court at Guntur without any male support, and that she was constrained to file the present petition seeking to withdraw the F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur and transfer the same to the Family Court-cum-V Additional District Judge, Visakhapatnam.

3. Heard learned counsel for the petitioner and Sri N. Sri Ram Murthy, learned counsel for the respondent thorough virtual mode.

4. Learned counsel for the respondent would contend that the respondent/husband filed F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and subsequent to institution of the said case filed by the husband, the petitioner/wife herein abused the process of law and filed one after another case against the respondent/husband herein and all the three (3) cases has been filed before the competent Courts at Visakhapatnam, and the same are pending for adjudication.

5. Learned counsel for the respondent further contended that, the respondent/husband is a software employee currently he has been residing at Kukatpally, at Hyderabad.

6. Perused the material available on record.

7. The material on record prima facie goes to show that, the petitioner/wife is a house wife and she is staying at her parents' house at Visakhapatnam and she has instituted three (3) cases against the respondent/husband before the competent Courts at Visakhapatnam and the respondent/husband is also attending the case proceedings before the said Courts at Visakhapatnam. It is also a fact that that the respondent/husband also filed F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court

at Guntur, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights. The contention of the learned counsel for the petitioner is that, the petitioner/wife is a house wife and she has been residing at her parents' house at Visakhapatnam and the distance between the Visakhapatnam and Guntur is more than 400 kms, since the petitioner being a woman depending upon her parents, it is very difficult for her to travel from Visakhapatnam to Guntur without any male support, and that she was constrained to file the present transfer petition.

8. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha¹ held as follows:

2022 LiveLaw (SC) 627

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case law that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife to withdraw the F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur and transfer the same to the Family Court-cum-V Additional District Judge, Visakhapatnam. On considering the submissions made by the learned counsel for respondent, since the respondent/husband is a software employee and staying in Hyderabad, therefore, the personal appearance of the respondent herein i.e., the petitioner in F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur, has been dispensed with until disposal of the said case with before the transferee Court i.e., the Family Court-cum-V Additional District Judge, Visakhapatnam, "except on the days when his presence is required as per law".

10. In the result, the Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur, is hereby withdrawn and transferred to the Family Court-cum-V Additional District Judge, Visakhapatnam. The learned Judge, Family Court at Guntur, shall transmit the case record in F.C.O.P.No.26 of 2024 to the Family Court- cum-V Additional District Judge, Visakhapatnam, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of this order. Furthermore, the personal attendance of the respondent herein i.e., the petitioner in F.C.O.P.No.26 of 2024 on the file of the Judge, Family Court at Guntur, has been dispensed with until disposal of the said case, before the transferee Court i.e., the Family Court- cum-V Additional District Judge, Visakhapatnam, "except on the days when his presence is required as per law". Both the parties are directed to

appear before the Family Court Judge-cum-V Additional District Judge, Visakhapatnam, on 13.02.2025, at 10.30 a.m. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

_____ JUSTICE V.GOPALA KRISHNA RAO Date:
07.01.2025 CVD